

AUTHORITY

PERSONAL DATA

Authority Personal Data

P.O. Box 93374, 2509 AJ The Hague

Hoge Nieuwstraat 8, 2514 EL The Hague

T 070 8888 500 - F 070 8888 501

autoriteitpersoonsgegevens.nl

The Minister of Justice and Security

P.O. Box 20301

2500 EH THE HAGUE

Date

May 8, 2023

Our reference

z2023-01081

Your letter dated

February 20, 2023

Your reference

4473669

Subject

Advice on the draft bill for the alcohol meter

Dear Ms. YeMilgoz-Zegerius,

In your letter dated February 20, 2023, the Authority Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft for the amendment of the Penal Code and the Code of Criminal Procedure in connection with the introduction of the Alcohol Meter as a control tool to monitor compliance with an alcohol ban (Alcohol Meter) (hereinafter: the draft).

The AP has examined whether the processing of personal data in the draft is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that, among other things, the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the requirements for the protection of the rights and freedoms of others (1. suitability);
2. the objective not being reasonably achievable in an equally effective manner through another means that infringes less on the fundamental rights of the individuals concerned (2. subsidiarity);
3. the interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (3. proportionality);
4. the draft being sufficiently clear and precise regarding the scope and being predictable in its application (4. legal certainty);
5. the draft sufficiently indicating under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (5. substantive and procedural safeguards); and
6. the draft being binding under national law (6. constitutionality).

The AP has objections to the draft that particularly relate to (the substantiation of) the aspects (5.) substantive and procedural safeguards, (3.) proportionality, and (4.) legal certainty, and advises not to continue the procedure unless these objections are resolved.

Scope of the draft

A suspect or convicted person may (under certain conditions) be prohibited from using narcotics or alcohol. Currently, compliance with this prohibition can be monitored through a blood or urine test. The

draft proposes that compliance can also be monitored "by using a technical tool that measures through the skin surface." In this context, the draft specifically introduces the alcohol meter.

The alcohol meter is a wristband that measures alcohol intake through perspiration on the skin surface. The measurement results are transmitted with a randomly unique number via a base station and modem to the manufacturer SCRAM in the United States (US). After analysis, SCRAM reports the measurement results in the SCRAMNET portal. Employees of the probation service and the Transport and Support Service have access to this. Only the probation service can trace the random unique number back to an "IRIS number" and thus to a natural person.

Advice

Transfer of personal data to a third country (substantive and procedural safeguards)

The measurement results of the alcohol meter are (pseudonymized) transmitted to the manufacturer SCRAM in the US. The transfer of personal data to a third country, such as the US, is only possible based on:

1. an adequacy decision;
2. appropriate safeguards;
3. binding corporate rules (BCR); or
4. specific exceptions.

Currently, there is no valid adequacy decision for the transfer of personal data to the US. The draft or the explanation does not indicate on what other grounds the transfer to third countries is applicable.

1 The IRIS number is the internal number of a client in the registration system of the probation service.

2 Explanatory memorandum, p. 8.

3 Third countries are all countries outside the European Union, except for the countries in the European Economic Area. These are Norway, Liechtenstein, and Iceland.

4 Article 45 of the GDPR.

5 Article 46 of the GDPR.

6 Article 47 of the GDPR.

7 Article 49 of the GDPR.

8 Article 44 of the GDPR.

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The AP advises against transferring personal data to a company in the US until a valid adequacy decision is in place, or it is demonstrated that there is another valid ground for transfer.

False positive results (proportionality)

Pilot tests with the breathalyzer have taken place. The explanation indicates that the percentage of users in which alcohol consumption was detected during a pilot (29%) was higher than the percentage of users who reported having consumed alcohol (24%). Such a false positive result can constitute a very serious infringement on the personal privacy of the individual concerned, such as converting a conditional prison sentence into an unconditional one. The (risk of a) false positive result, without a fully reliable recheck on alcohol intake when the individual denies consumption, is therefore not proportional.

The explanation notes that a false positive result, according to the manufacturer's statement, is virtually impossible. Additionally, a footnote in the explanation refers to two studies on validity and reliability, without presenting the results of these studies or incorporating them into the justification. A single statement from the manufacturer that a false positive result is "virtually impossible" is not sufficient to conclude that the breathalyzer cannot give an incorrect result. The AP advises

demonstrating in the explanation that the breathalyzer cannot produce a false positive result, or ensuring a fully reliable recheck on alcohol intake.

Specification of personal data (legal certainty)

According to the explanation, the breathalyzer contains an alcohol sensor and a sensor that detects skin temperature. The draft or the explanation does not clarify whether the exact blood alcohol content is recorded and provided, or only the fact that alcohol has or has not been consumed. It is also unclear whether the exact skin temperature is recorded and provided. The AP advises, from the perspective of legal certainty, to specifically and exhaustively name the personal data being processed in the draft and to substantiate this in the explanation.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

9 Explanatory memorandum, pp. 4-5.

10 Explanatory memorandum, footnote 6, p. 5.

11 Explanatory memorandum, p. 3.

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Publication of the advice

The AP intends to publish this advice no earlier than four weeks after the date on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Sincerely,

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Dutch Data Protection Authority

Aleid Wolfsen

Chairman